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President Reagan's Six Assurances to Taiwan

Introduction

Under the U.S. "one-China" policy, the U.S. government has, since 1979, maintained official relations with the People's Republic of China (PRC) and unofficial relations with self-governed Taiwan, over which the PRC claims sovereignty. Until 2020, U.S. Administrations described the U.S. one-China policy as being guided by three U.S.-PRC joint communiqués (concluded in 1972, 1978, and 1982) and the Taiwan Relations Act (TRA, P.L. 96-8; 22 U.S.C. §§3301 et seq.). Since 2020, U.S. Administrations have stated that the U.S. one-China policy is guided by the TRA and the joint communiqués (in that order), and also by "Six Assurances" communicated to Taiwan's president in 1982.

Historical Context

In the 1978 U.S.-PRC joint communiqué, the United States and the PRC agreed to establish diplomatic relations on January 1, 1979. In an accompanying statement, the U.S. government said it would terminate diplomatic relations with the Taiwan-based Republic of China (ROC) on the same date. With some Members portraying the moves as a betrayal of Taiwan, Congress passed the TRA, enacted on April 10, 1979. Among the TRA's provisions is that the United States "will make available to Taiwan such defense articles and defense services in such quantity as may be necessary" for Taiwan's self-defense.

By 1982, continued U.S. arms sales to Taiwan pursuant to the TRA had become a major irritant in the U.S.-PRC relationship. The Ronald Reagan Administration sought to address the issue through negotiation of a third U.S.-PRC joint communiqué. In the August 17th Communiqué, named for the day in 1982 on which it was released, the PRC government affirmed "a fundamental policy of striving for a peaceful reunification" with Taiwan. With such PRC statements "in mind," the United States stated "that it does not seek to carry out a long-term policy of arms sales to Taiwan, that its arms sales to Taiwan will not exceed, either in qualitative or in quantitative terms, the level of those supplied [since 1979], and that it intends gradually to reduce its sale of arms to Taiwan, leading over a period of time, to a final resolution."

Aware of mounting concern in Taiwan over the third communiqué negotiations, on July 10, 1982, then-Under Secretary of State Lawrence Eagleburger instructed James Lilley, director of the unofficial U.S. representative office in Taiwan, the American Institute in Taiwan, to seek a meeting with Taiwan's President, Chiang Ching-kuo. The talking points Eagleburger sent Lilley by cable for the meeting, authorized by President Reagan, included statements detailing what the U.S. government had *not* agreed to in its negotiations with the PRC. Those statements, delivered to President Chiang on July 14, 1982, are now known as the U.S. "Six Assurances" to Taiwan.

Table 1. The Official Texts of the Six Assurances

CRS has bolded the verb tenses

Eagleburger cable: for Taiwan's Pres. Chiang (7/10/82)	Shultz cable: for Taiwan to make public (8/17/1982)	Holdridge testimony before Senate (8/17/1982)
"We **have not** agreed to set a date certain for ending arms sales to Taiwan."	The U.S. "**has not** agreed to set a date for ending arms sales to Taiwan."	"[W]e **did not** agree to set a date certain for ending arms sales to Taiwan."
"We **have not** agreed to prior consultation on arms sales [to Taiwan]"	The U.S. "**has not** agreed to consult with the PRC on arms sales to Taiwan."	"[The 1982 joint communiqué] **should not be read to imply that we have agreed** to engage in prior consultations with Beijing on arms sales to Taiwan."
"We **have not** agreed to any mediation role for the U.S."	The U.S. "**will not** play any mediation role between Taipei and Beijing."	"[W]e **see no** mediation role for the United States."
"We **have not** agreed to revise the Taiwan Relations Act."	The U.S. "**has not** agreed to revise the Taiwan Relations Act."	"We **have no** plans to seek any such revisions [to the TRA]."
"We **have not** agreed to take any position regarding sovereignty over Taiwan."	The U.S. "**has not** altered its position regarding sovereignty over Taiwan."	"[T]here **has been no** change in our longstanding position on the issue of sovereignty over Taiwan."
"The PRC has at no time urged us to put pressure on Taiwan to negotiate with the PRC; however, we can assure you that we **will never** do so."	The U.S. "**will not** exert pressure on Taiwan to enter into negotiations with the PRC."	"**[N]or will we** attempt to exert pressure on Taiwan to enter into negotiations with the PRC."

Source: "Declassified Cables," American Institute in Taiwan; U.S. Congress, Senate Committee on Foreign Relations, *U.S. Policy Toward China and Taiwan*, 97th Cong., 2nd sess., August 17, 1982.

After Taiwan's government requested U.S. permission to make the assurances public, then-Secretary of State George Shultz on August 17, 1982, provided Lilley with a reworded version of the Six Assurances for that purpose. In Washington, DC, then-Assistant Secretary of State for East Asian and Pacific Affairs John H. Holdridge testified about the communiqué before the Senate (on August 17) and the House (on August 18). He wove the Six Assurances into his testimony in both chambers, but did not label the assurances as such or disclose that President Reagan had offered them to Taiwan's president the previous month. The three U.S. government-released versions of the Six Assurances are presented in **Table 1**.

Differing U.S. Government Texts

For nearly 38 years, the sole publicly released U.S. government text for the Six Assurances was woven into Holdridge's 1982 testimony. The Eagleburger and Shultz cables remained classified. In the absence of authoritative stand-alone text, some sources asserted that the Six Assurances stated that "the United States would not formally recognize Chinese sovereignty over Taiwan." House Concurrent Resolutions introduced in seven Congresses cited that purported assurance: H.Con.Res. 69 (109th Congress), H.Con.Res. 73 (110th), H.Con.Res. 18 (111th), H.Con.Res. 122 (112th), H.Con.Res. 29 (113th), H.Con.Res. 124 (115th), and H.Con.Res. 117 (116th).

The 114th Congress approved resolutions (H.Con.Res. 88 and S.Con.Res. 38) that quoted from the assurances woven into Holdridge's 1982 testimony. Both urged "the President and Department of State to affirm the Six Assurances publicly, proactively, and consistently as a cornerstone of United States-Taiwan relations." The first Trump Administration declassified the Eagleburger and Shultz cables in 2020, entering into the public record two more authoritative, but slightly different, U.S. texts for the Six Assurances. Areas of difference are discussed below.

Taiwan's sovereignty: The Eagleburger cable includes an assurance that in negotiations with the PRC, "We have not agreed to take any position regarding sovereignty over Taiwan." The Shultz cable is more ambiguous, stating that the U.S. side "has not altered its position regarding sovereignty over Taiwan," without stating the U.S. position, or lack thereof. The Shultz cable includes the parenthetical statement, "FYI: If asked why we have modified the statement on sovereignty, you should explain that we have consistently used this terminology in our public statements." The Holdridge testimony similarly states "no change" in the U.S. position, without stating that position. Taking no position on Taiwan's sovereignty has been long-standing U.S. policy.

Verb tenses: The three U.S. government-released versions of the Six Assurances vary in the verb tenses they use for individual assurances. In the Eagleburger cable, five of the assurances are in past tense ("have not agreed") and one is in future tense ("will never" pressure Taiwan to negotiate with the PRC). In the Shultz cable, one additional assurance is forward-looking ("will not" mediate between Taipei and Beijing). In the Holdridge testimony, three assurances are forward-looking, the third being that the United States has "no plans" to seek revisions to the TRA.

The Six Assurances in Legislation

The varying verb tenses of individual assurances contribute to ambiguity about the degree to which they might be read as guiding future policy. Without resolving that ambiguity, since 2017, Congress has passed 11 laws with provisions referencing the Six Assurances, 9 of them National Defense Authorization Acts (NDAAs). The other laws are the Asia Reassurance Initiative Act of 2018 (P.L. 115-409) and the Taiwan Assurance Act of 2020 (P.L. 116-260).

- The NDAAs for FY2021, FY2022, and FY2023 (P.L. 116-283, P.L. 117-81, and P.L. 117-263) state the sense of Congress that the TRA and the Six Assurances "are the foundation for" U.S.-Taiwan relations. The NDAAs for FY2019 and FY2020 (P.L. 115-232 and P.L. 116-92) state the sense of Congress that the TRA and the Six Assurances "are both cornerstones of" U.S.-Taiwan ties.

- The NDAA for FY2024 (P.L. 118-31) states the sense of Congress that "the United States' one China policy, as guided by" the TRA, the three U.S.-PRC Communiqués, and the Six Assurances, "is the foundation for" U.S.-Taiwan relations.

- The NDAAs for FY2022 through FY2026 (including P.L. 118-159 and P.L. 119-60) state the sense of Congress that the United States should strengthen the U.S. partnership with Taiwan "consistent with" the three joint communiqués, the TRA, and the Six Assurances.

- The NDAA for FY2018 (P.L. 115-91) and P.L. 116-260 state that it is U.S. policy to reinforce U.S. commitments to Taiwan "under" the TRA and "consistent with" the Six Assurances, with P.L. 116-260 adding "in accordance with the United States 'One China' policy."

- P.L. 115-409 states that it is U.S. policy "to faithfully enforce all existing United States Government commitments to Taiwan, consistent with [the TRA], the 3 joint communiques, and the Six Assurances.

In the 119th Congress, the Six Assurances to Taiwan Act (H.R. 3452 and S. 3208) would state that it is U.S. policy to reaffirm a version of the Six Assurances that combines the three existing official versions into one text. In that combined text, four assurances are in past tense, one includes both past and future tenses (the United States "did not and will not agree to play any mediation role"), and one is forward-looking. Addressing ambiguity about the effect of the Six Assurances, the act would provide for congressional review of specific proposed executive branch actions related to the Six Assurances: namely, actions "to pause or terminate" arms sales to Taiwan, negotiate with the PRC on Taiwan arms sales, mediate between Taiwan and the PRC over Taiwan's sovereignty, change the long-standing U.S. position on sovereignty over Taiwan, or pressure Taiwan to negotiate with the PRC.

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